

LAND USE HEARING CONTINUATION

Monday, August 17, 2026, at 10:00 a.m.

Anne G. Basker Auditorium, 600 NW Sixth Street, Grants Pass, OR 97526

Present: Ron Smith, Chair; Colene Martin, Vice-Chair; and Gary Richardson, Commissioner; Nikole Guzman, Recorder

These are meeting minutes only. Only text enclosed in quotation marks reports a speaker's exact words.

Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, reconvened the continued Land Use Hearing at 10:00 a.m. The matter had been continued from August 10, 2026, with the evidentiary record remaining open for additional evidence and testimony.

1. LAND USE HEARING CONTINUATION: *(Hearings are conducted in accordance with Josephine County Code Chapter 19.31 - Public Hearings, a copy of which is available from staff.)*

Request for an Appeal objecting to the Director's Decision to Deny the placement of a Non-Farm Dwelling on property located in the Exclusive Farm (EF) zone with access from Lower River Road; Assessor's Map 36-06-15-C0, Tax Lot 2800.

Declaration of Potential Conflicts / Recusal:

Commissioner Richardson declared no potential conflict of interest. Commissioner Martin disclosed that she had known the Bakers through her years in business and Rotary and had recently learned that her son works for a company associated with the project the applicants hoped to develop. She stated that she believed she could be fair and impartial, but recused herself from the continued hearing and deliberations out of concern for the integrity of the process and the confidence of both parties. Chair Smith declared no potential conflict of interest. Commissioner Martin did not participate further in the hearing.

Continued Hearing / Additional Evidence:

a. Appellant Supplemental Presentation

Justin Gerlitz, PE, Gerlitz Engineering Consultants, appeared for the appellant, Dirling Revocable Living Trust, and presented supplemental information addressing the soil-evidence issue raised at the August 10 hearing. He stated that the appellant was not seeking a rezone or formal reclassification of the entire property under ORS 215.211, but was seeking approval of a Non-Farm Dwelling on the portion of the parcel that is generally unsuitable for farm use.

Mr. Gerlitz presented a new soil analysis prepared by Gary Kitzrow, identified as a DLCD-approved soil scientist. According to the presentation, the analysis concluded that the southern portion of the flag-lot body contains unsuitable farm soils because of shallow topsoil over underlying material, while the northern portion contains suitable soils. Mr. Gerlitz stated that the applicants were willing to relocate the proposed dwelling from the northern portion to the southern portion so the home site would be placed on the area identified as unsuitable for farming.

Mr. Gerlitz stated that the parcel contains approximately 2.71 acres and that, after accounting for approximately 1.32 acres associated with the access easement and applying the supplemental soil analysis, approximately 0.67 acre remained as suitable farm soil. He argued that the limited area, access, surrounding uses, drainage/flooding considerations, and soil conditions should be evaluated together under the Non-Farm Dwelling criteria. He also compared the request to the prior approval for the neighboring Baker property and maintained that the Board had authority to approve the application without changing the underlying EF zoning.

Questions from the Board:

Commissioner Richardson asked about differences between the subject property and the historical approval for the Baker property, including the existence of irrigation rights on the subject parcel. Mr. Gerlitz acknowledged the subject property has irrigation rights but stated that the new soil information established a separate adverse condition on the southern portion. He also confirmed that the original proposed home site and an existing well were located in the northern portion and that the applicants would move the home site south to conform to the new soil analysis.

Opponents' Response:

James R. Dole, Watkinson Laird Rubenstein PC, appeared for Lindi and Buck Baker. Mr. Dole stated that the new soil report and proposed relocation of the dwelling were substantial new information that the opponents had not had a fair opportunity to review before the hearing. He questioned whether moving the home site constituted a significant modification requiring additional review and asked that the Bakers be given time to evaluate the Kitzrow report and respond. He continued to rely on the written opposition previously submitted and argued that the agricultural qualities

of the surrounding properties remained relevant to whether the application satisfied the applicable criteria.

Buck Baker spoke in opposition and described flooding he had observed on the property, including the 1997 flood, and soil disturbance he attributed to the 1964 flood and subsequent Army Corps of Engineers work. He expressed concern that moving the proposed dwelling farther south could raise additional floodway issues. He also reiterated his concern about additional residential development on EF-zoned land and asked the Board to uphold the Planning Director's denial.

Planning / Legal Counsel Comments:

Tami Smith, Josephine County Planning, advised that relocating the dwelling did not necessarily require a new application but that additional time could be provided for review. Chase Beguin, counsel for the County Land Use Department, stated that the supplemental report appeared to address the previously identified soil-documentation issue, but the proposed new home site would still need to be evaluated for floodway and related site requirements, including updated rise-level or other necessary analysis. Counsel stated that a further continuance could allow both the opponents to review the new technical material and the applicant to obtain the information needed for the relocated home site.

Commissioner Richardson asked counsel to address several threshold legal questions he had provided. Counsel stated that additional research would be necessary concerning the classification of high-value farmland, the interaction between the soil analysis and County code, and other land-use issues raised by the new materials. Commissioner Richardson stated that he wanted those issues resolved before making a determination.

Additional Opponent Testimony / Materials:

Lindi Baker stated that receiving substantial new technical information at the continuation hearing made it difficult for the parties and the decision makers to evaluate the evidence fairly. She submitted additional written materials for the record, including a signed letter, a letter from another neighboring property owner, and a memorandum concerning a previously submitted statement of support. She also discussed the historical approvals for the surrounding properties and disputed the characterization that the subject parcel is surrounded on three sides by residential property, describing agricultural uses immediately to the west and farther east of the parcel.

Additional Public Testimony:

Herman Baertschiger, Josephine County, spoke in opposition. He described decades of personal farming experience in the Lower River Road area and stated that he had farmed the subject property and neighboring properties. He characterized the area as productive agricultural land with strong irrigation rights and stated that the surface soils are suitable for irrigated hay and pasture. Speaking also from his experience with the Fort Vannoy Irrigation District, he expressed concern that placement of a residence on irrigated EF land would reduce irrigated acreage and diminish the associated water right. He urged protection of high-value agricultural resource land.

Appellant Rebuttal:

Mr. Gerlitz responded that the shallow soil conditions identified on the southern portion were consistent with the history of flood scour discussed during the hearing. He stated that rural residential properties exist near the river where soils are thinner, while larger farm tracts farther from the river generally have deeper soils. He reiterated that the applicants had obtained site-specific soil information from a qualified soil scientist and that relocation of the home site could be addressed through the normal building/site-plan and updated floodway review process. He again maintained that the application satisfied the Non-Farm Dwelling criteria.

Board Discussion / Further Continuance:

Chair Smith and Commissioner Richardson agreed that the newly submitted information required additional time for review. Chair Smith stated that he wanted to visit the subject and surrounding properties, and Commissioner Richardson noted that Legal Counsel had identified questions requiring further research. The Board also recognized the need for Planning to evaluate the relocated home site and for the opponents to have an opportunity to review and respond to the supplemental soil report.

The Board agreed to continue the hearing to Monday, September 21, 2026, at 10:00 a.m. The evidentiary record remained open for additional information and testimony. No final deliberation or decision on the appeal was made, and no formal motion or roll-call vote was taken on the continuance.

Hearing Continued:

Chair Smith continued the Land Use Hearing to Monday, September 21, 2026, at 10:00 a.m.

Meeting Adjourned at 10:44 a.m.



Nikole Guzman, Recorder



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August 14, 2026

Via Email: tsmith@josephinecounty.gov

Josephine County Board of
Commissioners
500 N.W. Sixth Street, Dept. 6
Grants Pass, OR 97526

Board of Commissioners:

RE: Applicant/Appellant: Dirling Revocable Trust
36-06-15-C0; TL 2800

The initial evidentiary hearing in this matter included discussion regarding the Technical Opinion from Mr. Vogl on behalf of the applicant. The board cannot consider this as evidence. Even if the board could, it is insufficient for the applicant to satisfy the applicable criteria.

Mr. Vogl's conclusion is that this parcel is not properly zoned as farmland: "the property should be found unsuitable and not economically viable for crop farming." Mr. Vogl goes into detail as to the soil conditions he considers inconsistent with farm production. In effect, his opinion is that this property does not include any Goal 3 resources, notwithstanding the fact that it has always been zoned Exclusive Farm and its Comprehensive Plan designation is likewise.

The planning director correctly noted at the hearing that ORS 215.211 does not permit the applicants to offer Mr. Vogl's opinion in support of the applicable criteria. The statute provides in relevant part:

(1) If a person concludes that more detailed soils information than that contained in the Web Soil Survey operated by the United States Natural Resources Conservation Service would assist a county to make a better determination of whether land qualifies as agricultural land, the person must request that the

Department of Land Conservation and Development arrange for an assessment of the capability of the land by a professional soil classifier who is:

(a) Certified by and in good standing with the Soil Science Society of America; **and**

(b) Chosen by the person.

Mr. Vogl is not qualified to render his opinion, or if he is he has failed to provide proof of that. Moreover, it is clear that the applicant has yet to engage DLCD in its role that would be required under the circumstances.

Simply put, these facts make it improper for the board to consider the submission.

Regardless, Mr. Vogl fails to provide sufficient foundation for the board to accept his opinion. The opponents do not concede that a California-registered hydrologist and geologist has the same education, experience and qualifications as either a soil scientist or one possessing expertise in agricultural industries to opine as to the farming-capacity of a property. Likewise, every one of the conclusions he renders, most of which appear to be uniquely related to agricultural productivity, is conclusory with virtually no support in either professionally-recognized literature or personal experience of the author.

It is significant that Mr. Vogl appears to conclude that this property is essentially barren, and highly unlikely to grow much of anything. This is at odds with adjacent farmland, including nearby orchards and alfalfa production. Mr. Vogl does nothing to distinguish the conditions that exist on these adjacent and nearby lands which are currently in production that are not present on the applicant's parcel. Our clients will provide evidence of their observations about that which directly conflicts with Mr. Vogl's opinions. It is difficult to accept Mr. Vogl's opinion that this property has no usable farm soils because there are stream gravels nearly two feet below grade. How would that condition, if it exists, restrict crops like hay, grasses, corn, berries, or vegetables, to name a few? In other words, Mr. Vogl's opinion is not reliable and would not constitute sufficient evidence upon which this board could base a decision to overturn the director's denial.

Much of the applicant's response to the denial is based on the contention that this parcel is "too small" to farm. Section 19.64.070.A. of the RLDC is clear that this is not a sufficient basis to show that a nonfarm dwelling should be permitted. While the applicant refers to unreliable, anecdotal and predominantly hearsay indications that others would not be interested in farming



this parcel, that does not render it incapable of being “sold, leased, rented or otherwise managed as part of a commercial farm or ranch.” Nothing impedes its use in conjunction with other farms or ranches. Of course, many other farming uses exist independently of other farms, including any variety of livestock production, farm crops like fruits and vegetables, and cannabis or hemp production, to name just a few.

Moreover, the applicant’s suggestion that the property is unsuitable for farming only if it is likely to be farmed profitably is not consistent with the criteria. The fact that the property has Class I – IV soils creates a strong presumption that the subject property can be farmed. If the applicant’s position were correct, that the standard is whether farming would be **profitable**, then many thousands of acres of productive farmland throughout Oregon would be subject to urban development notwithstanding the resource classification. Regardless, as our clients indicate, the applicant’s property is useful at least for livestock, in all likelihood with little if any maintenance or improvement to its fertile soils.

The letter from Mr. Hunter is subject to many of the same sorts of issues discussed above. First, I note that he does not even indicate that he has personally inspected the property. Moreover, he apparently farms in the Applegate Valley, an area significantly different than the relevant area. It is no surprise he would not consider it practical to farm this parcel while he is based a significant distance away. In any event, he has no apparent basis to conclude that this property’s highest and best use is “generational living.” Even if he was an expert on such a contention (he is not), that is irrelevant to the applicable criteria.

Arguments of the applicant’s representative that this property’s only possible use is residential development conflicts with local and statewide land use goals including Goal 3 and Goal 14. The land is in a resource classification and adding another residence would only increase urbanization, improperly. Contrary to statements in the initial public hearing, neither the Dirling or Baker properties are surrounded by residential development. Many exhibits in the record are clear that farmland, whether currently farmed or not, is the predominant characteristic of this area of the county.

The director’s decision must be sustained and the application must be denied because it does not satisfy the required approval criteria with substantial evidence.

Very truly yours,

A handwritten signature in dark ink, appearing to read 'James R. Dole', written in a cursive style.

James R. Dole

JRD:tep

cc: Buck and Lindi Baker

Lindi and Buck Baker
4707 Lower River Road
Grants Pass, OR 97526

August 14, 2026

Josephine County Board of Commissioners
500 NW 6th Street, Dept. 6
Grants Pass, OR 97526

Subject: Land Use Appeal; Applicant/Appellant: Dirling Revocable Trust; 36-06-15-C0; TL 2800

Dear Board of County Commissioners:

This is my third letter providing additional information regarding the above appeal. Again, we strongly oppose the application for the construction of a residential home on land designated as Exclusive Farm Use and incorporate all earlier submitted evidence into the record, together with this letter. Mr. Jim Dole also has submitted an additional letter and I summarize below specific areas that were brought up during the initial day of this appeal hearing that commenced on August 10, 2026.

1. The land adjacent to the Subject Parcel is actively growing prime alfalfa hay and hazelnut trees. This active agricultural acreage is only 50 feet away and adjacent to the Subject Parcel that Applicant claims has substandard soils to use for agriculture purposes. This claim makes no sense. There is further evidence already in the record of the abundant agricultural uses around the entire Lower and Upper River Road area. I submitted photographs of just a sampling of all of the surrounding agricultural uses within the area of the Subject Parcel, to the east, north and west sides. No one can deny that this is a soil rich, flat topography area that has irrigation provided onsite. It is perfectly set up for successful agriculture and livestock purposes without question by anyone who takes the time to look around.
2. The Subject Parcel also is fully capable of providing pasture land for livestock. Buck Baker testified that we had a horse on our adjacent parcel some years ago. We did not even have to provide extra feed as the growing lush grass provided nourishment and was more than adequate for many months of the year.
3. Applicant claims that the Soils Mapping got it wrong on its Subject Parcel. The Soils Mapping is not incorrect. The parcel clearly has high value soils in the top layers of the ground. Applicant's new proposed evidence (that is not admissible into this proceeding for reasons detailed in Mr. Dole's letter) suggests that in the 10 test holes they recently excavated, there is a showing of steam gravel deep down under the high value soil on the top. If you look at the photographs attached to the new report, you will see that Photos 1-7 display nice brown, rich soil. Photos 8-10 show some rocks. This is consistent with the Soils Mapping that shows predominately Class II soils and minimally Class IV soils.

Their new expert states these rocks are some 30" down from the surface (with an average of 22" below). What the "expert" does not mention is that suggested crops such as hay, corn, berries, vegetables, flowers, etc. do not require deep roots. Their roots lie at the top few inches of soil. Likewise, livestock grazing requires only grasses, also which have only very shallow roots. In fact, Applicant's agreement is fully without merit as the adjacent Hernandez fields also grow abundant hazelnut trees, which, of course, have very deep roots as opposed to simple surface roots found in hay, grasses and vegetable.

4. The adjacent Hernandez property also has grown abundant, commercial flowers in the past. The late Val Hernandez grew abundant flowers for commercial distribution on her adjacent land. She sold the flowers commercially at every Saturday Growers Market in Grants Pass. If you bought flowers at the Growers Market, you probably were favored to enjoy Val Hernandez's beautiful bounty, all grown on the parcel directly adjacent to the Subject Parcel.
5. Applicant claims the Subject Parcel is "too small" to be productive for agriculture and cannot be financially viable. See my earlier letter about parcels said to be too small. That is not a viable argument under the Land Use laws. Additionally, again comparing the existing Hernandez adjacent land, Mr. Hernandez grows 270+ hazelnut trees in narrow rows. Such an orchard clearly is just as viable on the Subject Parcel.
6. The Dirlings have not lived on their property for a significant period of time and do not appear to be particularly familiar with the surroundings and the agricultural values throughout the area. They purchased the property as a vacation home and lived in another state for years. We live next door but have only seen Mr. Dirling 4 or 5 times in 26 years, including at the hearing last week. We have seen Mrs. Dirling twice. By all appearances, it is other family members who are interested in the full residential development of this exclusive farm use land. Further, no one has ever asked us if we wanted to participate in farming the Subject Parcel and we are an adjacent property. They only seemed to inquire this of our 89 year old neighbor, Luis Hernandez who lives on the other side of the Dirling property. Likewise, no one asked us if we knew of someone who would want to farm the Subject Parcel.
7. This land historically was filled with hop fields and Buck used to work the harvest as a teenager. Now, those fields have been converted to corn and hay fields, adding to the many agriculture uses of the entire area. There is beautiful, rich soil, as evidenced in the Soils Mapping and described in multiple reports and letters in the record.
8. Applicant's representative, Justin Gerlitz, stated at least two times in his presentation to the Board that there is simply no other use for the Subject Parcel except for the building of another residence. He absolutely has overlooked or disregarded the goals and purposes of the Land Use Rules. Statewide Planning Goal 3 expressly recognizes the importance of EFU designation to protect agricultural lands, maintain agricultural economy of Oregon, ensure rural lands are used primarily for agricultural purposes, prevent urban sprawl, limit residential development in agricultural lands, and to protect open spaces in agricultural areas, scenic reserves and wildlife. Please see my first letter

of April 2026 which details this expressed goal. There are many wildlife species that inhabit the Subject Parcel and our adjacent land. This includes, but is not limited to, deer, foxes, opossums, squirrels, skunks and birds including osprey, herons, hummingbirds, blue jays, robins and geese. Wildlife protection and open space protection are two important and stated goals of the Statewide plan and Applicant has been totally silent regarding this expressed goal. In fact, their engineer continues to proclaim there is absolutely no use for this Subject Parcel except to build another house on it. There is another use, in addition to agriculture and livestock, – open space and wildlife preservation.

Applicant's request to build on EFU land must be denied based on the Land Use Laws and on all of the above. We respectfully request that the Board uphold the Planning Division's denial of the Dirling's application for a variance in this matter. A variance is not supported by the law, the facts or the evidence as presented.

Respectfully submitted,

Lindi Baker

Buck Baker



August 14, 2026

Josephine County Board of County Commissioners
500 NW 6th Street, Dept. 6
Grants Pass, OR 97526

RE: Dirling Non-Farm Dwelling – Appeal Hearing Response/Supplemental Documents

Board of County Commissioners,

The discussion at the August 10, 2026 appeal hearing placed substantial weight on ORS 215.211 and whether the Applicant's soils report satisfied the requirements of that statute. After carefully reviewing this statute, ORS 215.211 is not applicable to a Non-Farm Dwelling Permit Application and should not be considered for the decision.

Instead, the BCC has the clear authority to review the applicable criteria for a non-farm dwelling application based on the materials submitted to determine if the application qualifies for the proposed use.

Applicability of ORS 215.211

ORS 215.211 addresses circumstances in which more detailed soil information is sought to assist a county in determining whether land qualifies as agricultural land. This would be used if the property were being rezoned to a permanent rural residential zone or similar.

The Applicant is not seeking to remove the subject property from the Exclusive Farm Use (EFU) zone, formally reclassify the property's NRCS soil classifications in general, or establish that the property is no longer agricultural land. The property may remain agricultural land with EFU zoning regardless of whether the requested non-farm dwelling is approved.

Instead, the Applicant is requesting authorization to place a non-farm dwelling on a portion of an agricultural parcel that is generally unsuitable for farming. ORS 215.284 and County Development Code standards expressly provide a process for approval of non-farm dwellings within an EFU zone where the applicable criteria are satisfied. These criteria have clearly been addressed in the application documents with supplemental responses and new soils information addressed below.

Accordingly, the questions before the Board are not:

"Does this property qualify as agricultural land?"

Or;

"Does the Applicant's soils study satisfy ORS 215.211?"

Rather, the relevant question is:

"Does this property or a portion of this property satisfy the applicable County criteria and ORS 215.284 for placement of a non-farm dwelling based on the facts presented?"

Applicable Criteria

For this application, that determination centers on the following items based on the general criteria.

1. Question: Will the proposed non-farm dwelling force a significant change in or significantly increase the cost of accepted farm or forest practices on surrounding lands devoted to farm use?

Response: The County Planning Department has already determined that this criterion is satisfied. That determination was supported by an in-depth analysis of approximately 2,000 acres of surrounding EFU-zoned land. Accordingly, the proposed dwelling's compatibility with surrounding farm and forest practices should not be an impediment to approval.

2. Question: Is the dwelling situated upon a lot or parcel, or portion of a lot or parcel, which is "generally unsuitable" land for the production of farm crops and livestock or merchantable tree species, considering the terrain, adverse soil or land conditions, drainage and flooding, vegetation, location and size of the tract?

Response: The applicable criteria require consideration of whether the parcel or portion of parcel is "generally unsuitable" for farm use based upon all factors listed.

The Planning Department's original recommendation for denial, and much of the discussion during the appeal hearing, appeared to focus primarily on the property's "mapped" soil classification. Soil characteristics are certainly relevant, but they are only one component of the required analysis. The inquiry does not end with the general NRCS soil classification or with a determination that some portion of the property contains agricultural soils.

*The proper analysis requires consideration of the property as a whole and the practical ability of the land or portion of the land to support farm use. This can be shown in the *Hearne v. Baker County Court of Appeals* case which further clarified that all factors must be considered together in a land use decision for a non-farm dwelling permit.*

When all relevant factors are considered together, the application materials clearly demonstrate that a substantial portion of the subject property is generally unsuitable for productive farm use.

- *The overall parcel contains approximately 2.71 acres. After accounting for the dedicated existing 1.32 acre access easement/corridor and mapped non-prime soil areas, only approximately 1.39 acres remain as potentially farmable ground. This is the starting point.*
- *The initial soils investigation (Geologist) further demonstrates an important limitation that is not adequately reflected by simply identifying the property's mapped NRCS soil classification. Test pits indicate that a significant portion of*

the property contains a shallow soil profile. This is a significant practical limitation.

- *A subsequent soils review by Gary Kitzrow, an Oregon/DLCD approved Soil Scientist (see Exhibit "A"), further supports this. After deducting the access easement portion, **only approximately the northern 0.67 acres**, has competent Class 4 farm soils. Based on this report, the southern 0.72 acres cannot support farming operations.*
- *This conclusion is also consistent with the property owner's actual experience. The owner testified regarding efforts over approximately the last two decades to have neighboring agricultural operators farm the property. Those efforts have not resulted in the property being incorporated into a viable adjoining farming operation. That real-world history is relevant evidence of the practical agricultural limitations created by the parcel's size, location, configuration, soil limitations, and physical characteristics.*

3. Question: Can the subject parcel reasonably be put to farm use in conjunction with other farmland?

Response: The property's location is particularly important to this criterion.

The subject parcel is not situated in the middle of a larger block of actively farmed land. Instead, it is located within a defined pocket of existing residential development and is bordered on three sides by properties utilized for residential purposes. The only potentially available farmland for integration into a larger farm lies directly to the west.

But even that potential connection presents significant practical limitations.

The existing residential access corridor serving the residential properties creates a physical and operational separation between the subject property's potentially farmable area and the farmland to the west. Based upon the Institute of Transportation Engineers' Trip Generation Manual, the six parcels utilizing this access corridor are estimated to generate approximately 56 vehicle trips per day at full buildout.

Agricultural equipment attempting to move between the neighboring farmland and the subject property would therefore need to operate across an established residential access serving multiple properties.

The practical question is not whether it is physically possible for a tractor to cross the access corridor. The question is whether this approximately 0.72-acre southern portion of the parcel with unsuitable soils is suitable for farming.

Based on the new soils study, the Applicant submits that it is not.

If the property contained 20 acres of productive agricultural ground, an adjoining agricultural operator might reasonably accept the logistical difficulties associated with crossing the access corridor and incorporating the property into an existing operation. That is not the situation presented here.

The potential benefit of farming approximately 0.72 acres does not reasonably justify the additional equipment movement, access conflicts, mobilization, irrigation requirements, soil management, additional costs of amendments, and other operational costs necessary to incorporate the property into the adjoining farmland. This was stated by the adjacent farm operator in his letter of support. Even so, the small portion of the property that contains competent farm soils will remain for potential farming operations.

The unsuitable property area within a residential pocket, its separation from adjoining farmland, the small size of the potentially farmable area, and further soils review must be considered collectively.

Clarification of Issues Raised During the Hearing

Several statements made during the appeal hearing appear to reflect misunderstandings of the applicable criteria. The Applicant provides the following clarification.

1. "A nonfarm dwelling cannot be approved simply because the parcel is too small to farm."

Response: The Applicant agrees that size alone is not sufficient to establish that a parcel is unsuitable for farm use. However, the code specifically qualifies this limitation by stating that it applies only "if the parcel or portion of parcel can reasonably be put to farm or forest use in conjunction with other land."

Here, the issue is not size alone. The combination of the parcel's small farmable area, location, shallow soils, existing residential access, and separation from adjoining farmland makes it impractical to farm the southern portion in conjunction with other land. Therefore, size, location, and adverse soils remain relevant factors in determining whether this portion of the property is generally unsuitable for farm use.

2. A parcel is presumed to be suitable for productive farming if it is composed predominantly of agricultural soils.

Response: The Applicant acknowledges that the code creates a presumption of suitability when a parcel is composed predominantly of Class I–IV soils. However, a presumption is not the same as a conclusive determination.

The criteria still require consideration of the actual characteristics of the property, including terrain, adverse soil and land conditions, drainage, vegetation, location, and tract size. Here, the Applicant has provided site-specific evidence showing that, despite the mapped soil classifications, the limited farmable acreage, shallow effective rooting depth on the southern portion of the property, location, existing access, and inability to reasonably combine the land with an adjoining farming operation make the southern portion of the property generally unsuitable for farm use.

3. How did the Baker property (opponents) achieve the same right on the adjacent property within the EFU zone? Were the code requirements substantially different at the time?

Response: Based on the County records of the land use decision in 1993, the much larger 4.75-acre parcel with the same mapped soil conditions was approved for a non-

farm dwelling which was subsequently constructed on the property. When reviewing the criteria that were used, they are almost identical to today's standards which are referenced in the attached decision (see Exhibit "B").

Based on this, shouldn't the current applicant be granted the same right for the same reasons, especially considering the additional data presented to support the request?

Conclusion

The Board has full authority based on the information presented, laws referenced, and compliance with the applicable criteria to decide on the validity of this application as presented. If those criteria are met, as we strongly believe they are, the application should be approved.

The Applicant respectfully proposes that a significant portion of this property is unsuitable for farming and exactly the conditions contemplated by the non-farm dwelling criteria. It's extremely small farmable area, shallow soils, location within a residential corridor, inability to reasonably be farmed with adjoining land collectively, and inability to be profitable as a farm operation demonstrates that it is generally unsuitable for farm use.

Based on these new findings, the Applicant is willing to adjust the location of the homesite to fall within the unsuitable soil area. Approval does not remove the property from the EFU zone or eliminate future agricultural use altogether. The land outside of the dwelling and associated improvements will remain agricultural land well into the future.

If the site conditions in this portion of the parcel do not qualify for a non-farm dwelling, then what type of conditions would? We ask you to consider the facts presented to decide for approval of the non-farm dwelling application that is before you.

Sincerely,



Justin Gerlitz, P.E.

Attachments

DIRLING NON-FARM DWELLING PERMIT APPEAL HEARING CONTINUATION

PRESENTED BY:

JUSTIN GERLITZ, P.E.

GERLITZ ENGINEERING CONSULTANTS

AUGUST 17, 2026

APPLICABILITY OF ORS 215.211

- APPLICABLE TO FORMALLY CHANGING SOIL CLASSIFICATION AN WHETHER LAND QUALIFIES AS AGRICULTURAL LAND
- PROPERTY IS NOT BEING REZONED OR RECLASSIFIED AS SOMETHING OTHER THAN EXCLUSIVE FARM USE
- APPLICANT IS ONLY REQUESTING AUTHORIZATION TO PLACE A NON-FARM DWELLING ON A PORTION OF THE AGRICULTURAL LAND THAT IS UNSUITABLE FOR FARMING
- THEREFORE, THE ONLY QUESTION THAT NEEDS TO BE ANSWERED IS “DOES THIS PROPERTY OR A PORTION OF THIS PROPERTY SATISFY THE APPLICABLE COUNTY CRITERIA FOR PLACEMENT OF A NON-FARM DWELLING BASED ON THE FACTS PRESENTED?”

QUESTION #1 BASED ON CRITERIA

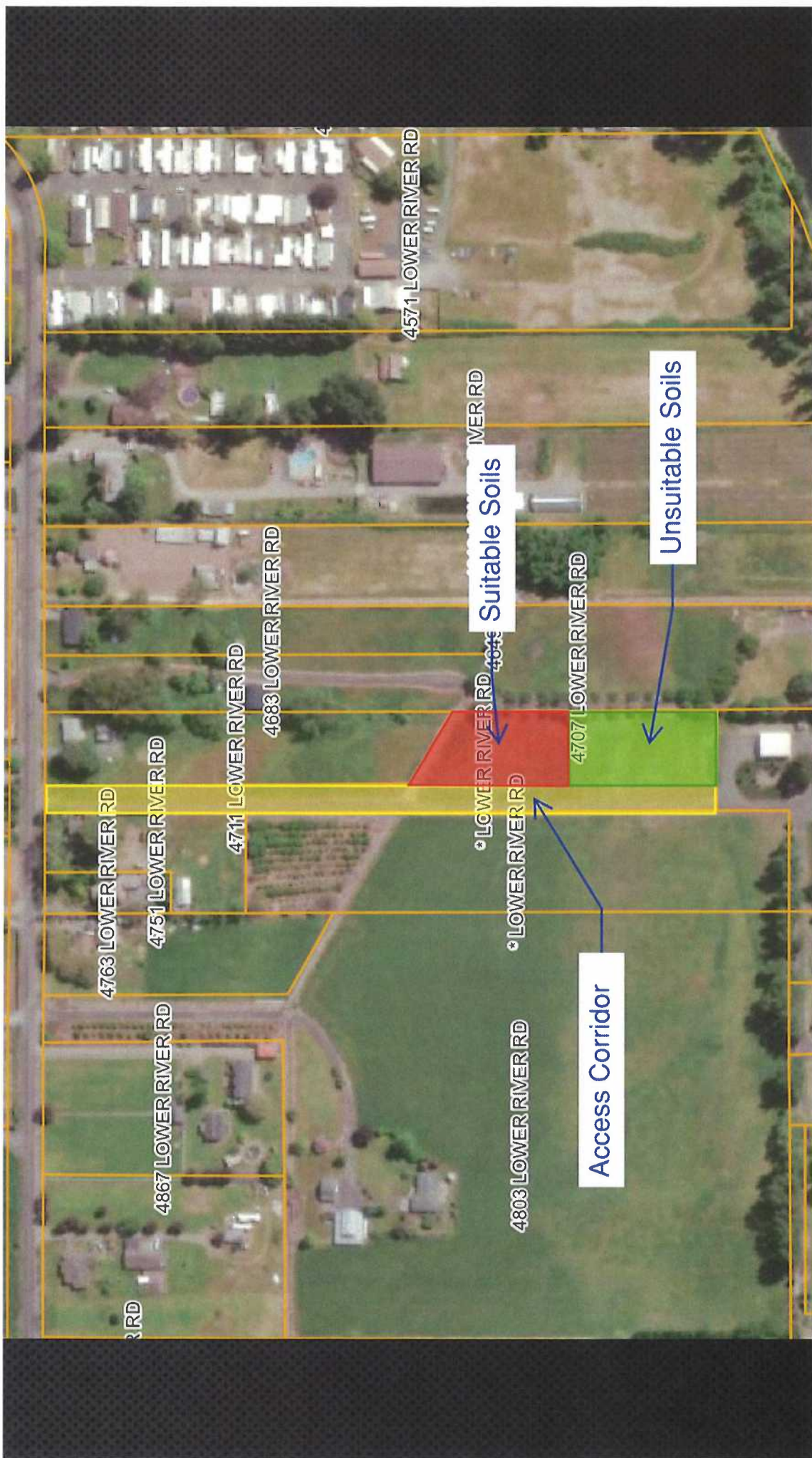
- WILL THE PROPOSED NON-FARM DWELLING FORCE A SIGNIFICANT CHANGE IN OR SIGNIFICANTLY INCREASE THE COST OF ACCEPTED FARM OR FOREST PRACTICES ON SURROUNDING LANDS
- THE COUNTY HAS DETERMINED THIS CRITERION IS SATISFIED
- A DETAILED 2,000 ACRE STUDY WAS COMPLETED OF THE SURROUNDING FARM ZONED LAND TO ADDRESS LACK OF IMPACTS AND COMPATIBILITY

QUESTION #2 BASED ON CRITERIA

- IS THE DWELLING SITUATED UPON A LOT OR PARCEL, PORTION OF A LOT OR PARCEL, WHICH IS “GENERALLY UNSUITABLE” LAND FOR THE PRODUCTION OF FARM CROPS AND LIVESTOCK OR MERCHANTABLE TREE SPECIES, CONSIDERING THE TERRAIN, ADVERSE SOIL OR LAND CONDITIONS, DRAINAGE AND FLOODING, VEGETATION, LOCATION AND THE SIZE OF THE TRACT?
- SOIL IS ONLY ONE COMPONENT OF THE REQUIRED ANALYSIS TO SEE IF A NON-FARM STRUCTURE QUALIFIES
- ALL FACTORS MUST BE CONSIDERED TOGETHER TO MAKE THIS DETERMINATION

QUESTION #2 BASED ON CRITERIA (CONT.)

- WHEN ALL FACTORS ARE CONSIDERED, THE APPLICANT CLEARLY DEMONSTRATES THAT A SUBSTANTIAL PORTION OF THE PROPERTY IS GENERALLY UNSUITABLE FOR FARM USE
- OVERALL PARCEL CONTAINS 2.71 ACRES
- AFTER DEDUCTING THE 1.32 ACRE ACCESS EASEMENT AREA, ONLY 1.39 ACRES REMAINS AS POTENTIALLY FARMABLE GROUND.
- SUBSEQUENT SOILS REVIEW THIS WEEK BY GARY KITZROW, APPROVED DLCD SOIL SCIENTIST, FURTHER SUPPORTS THIS, SHOWING ONLY 0.67 REMAINING ACRES HAS COMPETENT CLASS 4 FARM SOILS (NORTHERN PROPERTY AREA). THEREFORE, THE REMAINING SOUTHERN 0.72 ACRES CANNOT SUPPORT FARMING OPERATIONS.
- THIS IS CONSISTENT WITH THE PROPERTY OWNER'S STATEMENTS FROM OTHER FARMERS OVER THE YEARS THAT HE HAS TRIED TO HAVE FARM THIS LAND.



Suitable Soils

Unsuitable Soils

Access Corridor

QUESTION #3 BASED ON CRITERIA

- CAN THE SUBJECT PARCEL REASONABLE BE PUT TO FARM USE IN CONJUNCTION WITH OTHER FARMLAND?
- PARCEL IS SITUATED IN BETWEEN RESIDENTIALLY USED PROPERTY ON THREE SIDES
- WITH ONLY 0.67 ACRES REMAINING FOR FARMING BASED ON THE NEW SOILS DATA, AND FEEDBACK FROM THE ADJACENT FARMER TO THE WEST, IT IS CLEARLY NOT.
- THEREFORE, THE ONLY QUESTION THAT NEEDS TO BE ANSWERED IS "DOES THIS PROPERTY OR A PORTION OF THIS PROPERTY SATISFY THE APPLICABLE COUNTY CRITERIA FOR PLACEMENT OF A NON-FARM DWELLING BASED ON THE FACTS PRESENTED?"
- REGARDLESS, THE REMAINING AREA WILL REMAIN IN FARM INVENTORY.

CLARIFICATION #1 FROM FIRST HEARING

- A NON-FARM DWELLING CANNOT BE APPROVED SIMPLY BECAUSE THE PARCEL IS TOO SMALL TO FARM
 - APPLICANT AGREES THAT THIS ALONE IS NOT SUFFICIENT TO MAKE THE FINAL DETERMINATION.
 - COMBINATION OF THE PARCEL'S SMALL FARMABLE AREA, LOCATION, SHALLOW/ADVERSE SOILS, EXISTING RESIDENTIAL ACCESS, AND SEPARATION FROM ADJOINING FARMLAND MAKES IT IMPRACTICAL TO FARM THE SOUTHERN PORTION OF THE PROPERTY.

CLARIFICATION #2 FROM FIRST HEARING

- A PARCEL IS PRESUMED TO BE SUITABLE FOR PRODUCTIVE FARMING IF IT IS COMPOSED PREDOMINANTLY OF AGRICULTURAL SOILS
- A PRESUMPTION BASED ON GENERAL MAPPING IS NO THE SAME AS A CONCLUSIVE DETERMINATION.
- MUST CONSIDER THE CHARACTERISTICS OF THE SPECIFIC PROPERTY INCLUDING TERRAIN, ADVERSE SOIL AND LAND CONDITIONS, DRAINAGE, VEGETATION, LOCATION, AND TRACT SIZE.
- SITE SPECIFIC EVIDENCE SHOWS DESPITE MAPPING, THE SITE HAS EXTREMELY SHALLOW SOILS ON THE SOUTHERN PORTION OF THE PROPERTY AFFECTING ROOTING DEPTH/GROWTH, A LOCATION SURROUNDED PRIMARILY BY RESIDENTIAL USE, ACCESS CONFLICTS AND GENERAL INABILITY TO COMBINE WITH ADJACENT FARMLAND DUE TO ITS VERY SMALL REMAINING FARMABLE SIZE.

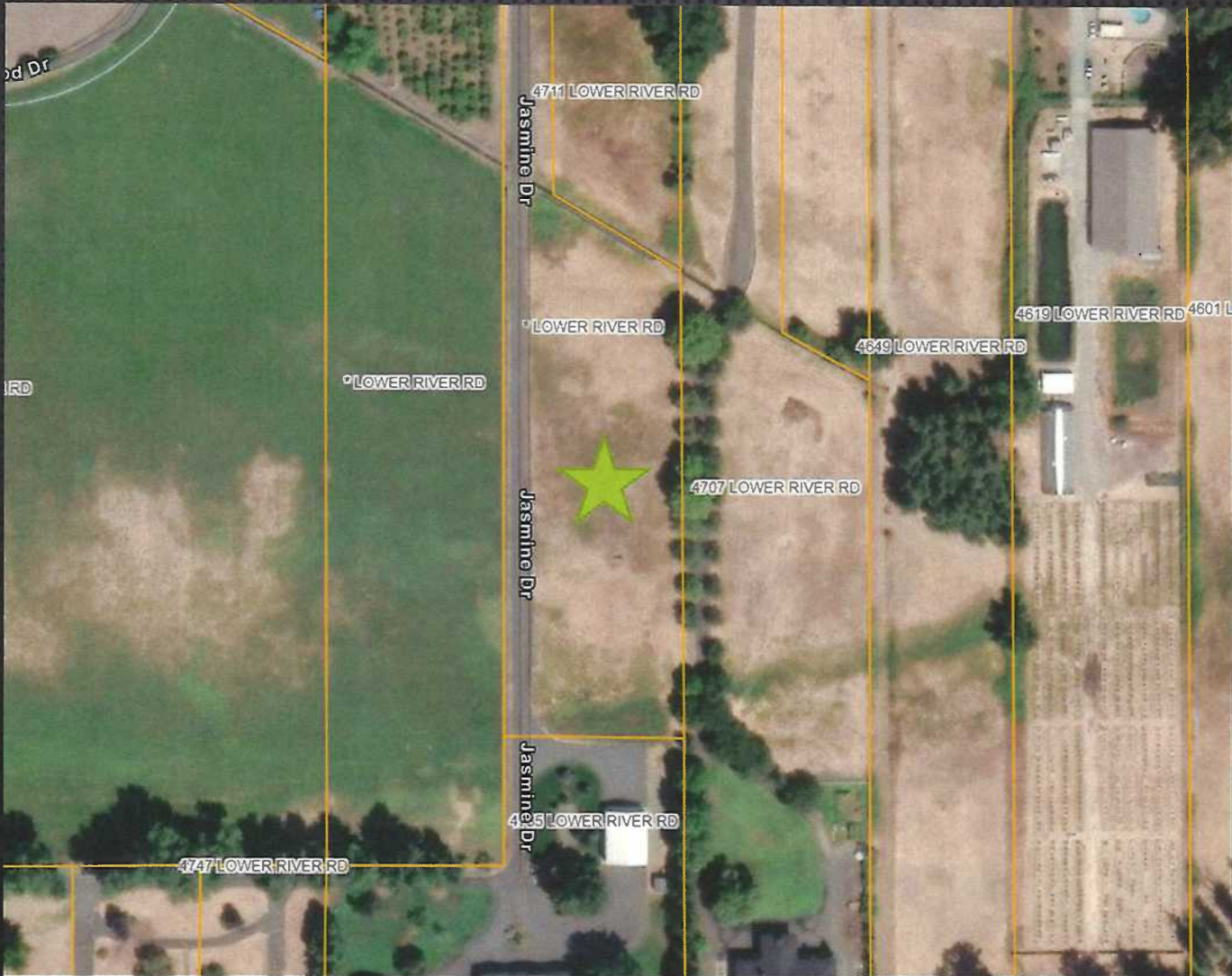
CLARIFICATION #3 FROM FIRST HEARING

- HOW DID THE BAKER PROPERTY ACHIEVE THE SAME RIGHT ON THE ADJACENT PROPERTY WITHIN THE EFU ZONE? WERE THE CODE REQUIREMENTS SUBSTANTIALLY DIFFERENT?
- BASED ON THE COUNTY RECORDS AND LAND USE DECISION IN 1993, THE MUCH LARGER 4.75 ACRE PARCEL WITH THE SAME MAPPED SOIL CONDITIONS WAS APPROVED FOR A NON-FARM DWELLING.
- THE CONDITIONS WERE ALMOST IDENTICAL TO THOSE IN FRONT OF YOU TODAY.
- SHOULD THEY NOT BE GRANTED THE SAME RIGHT, ESPECIALLY CONSIDERING THE ADDITIONAL DATA PRESENTED?

CONCLUSION

- BOARD HAS FULL AUTHORITY BASED ON THE LAWS AND INFORMATION PRESENTED TO MAKE THIS DECISION TODAY.
- A SIGNIFICANT PORTION OF THE PROPERTY INCLUDING THE ACCESS DRIVE/EASEMENT AND SOUTHERN PORTION OF THE PROPERTY DUE TO POOR SOIL CONDITIONS AND THE FACTS PRESENTED ARE NOT SUITABLE FOR FARMING OPERATIONS.
- OWNER WILL RELOCATE THE PROPOSED HOMESITE TO THE SOUTHERN PORTION OF THE PROPERTY TO ALIGN WITH STATE AND COUNTY STANDARDS.
- IF THE SITE CONDITIONS IN THIS PORTION OF THE PARCEL DO NOT QUALIFY FOR A NON-FARM DWELLING, THEN WHAT TYPE OF CONDITIONS WOULD?

PREVIOUS PRESENTATION



PRIMARY STAFF REPORT CONCERNS

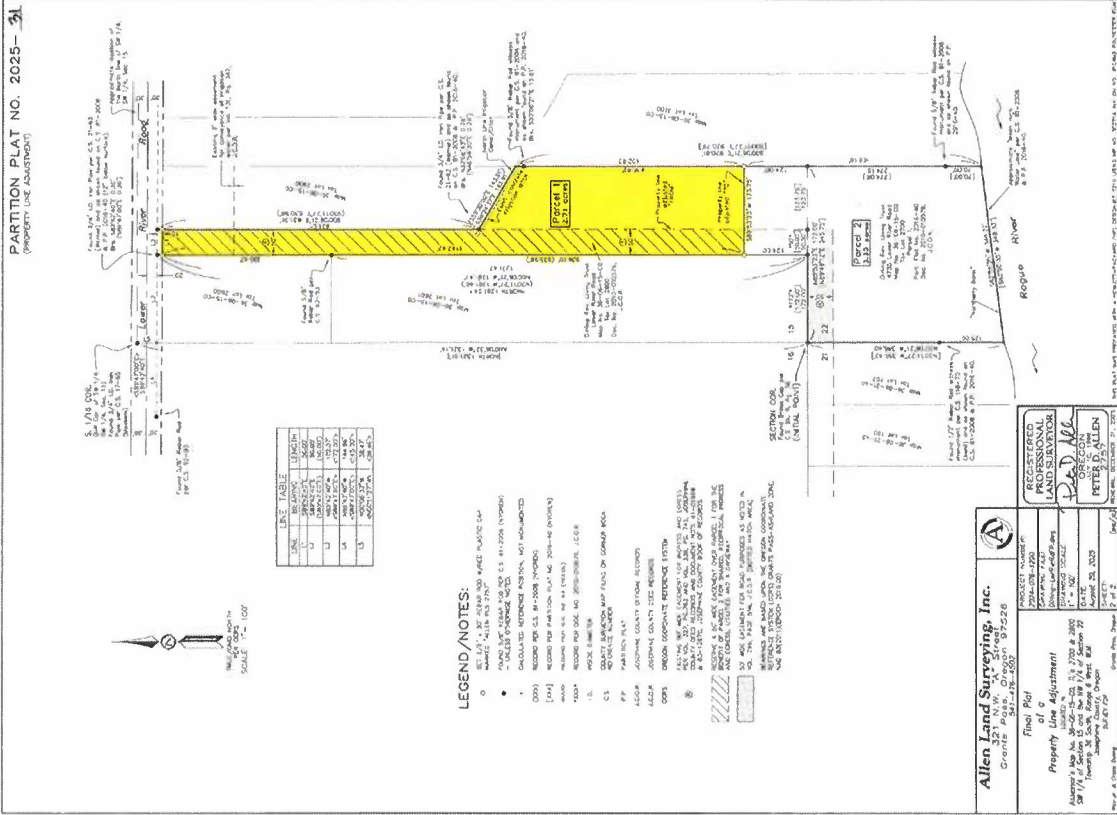
- b. A lot or parcel or portion of a lot or parcel is not "generally unsuitable" simply because it is too small to be farmed profitably by itself. If a lot or parcel or portion of a lot or parcel can be sold, leased, rented or otherwise managed as a part of a commercial farm or ranch, then the lot or parcel or portion of the lot or parcel is not "generally unsuitable." A lot or parcel or portion of a lot or parcel is presumed to be suitable if it is composed predominantly of Class I-IV soils. Just because a lot or parcel or portion of a lot or parcel is unsuitable for one farm use does not mean it is not suitable for another farm use; or

Although the parcel is physically separated from adjacent resource lands by existing development features, including a shared asphalt driveway to the west serving multiple residences and an irrigation canal to the north, Planning could not determine that the parcel or portion of the parcel cannot reasonably be sold, leased, rented, or otherwise managed as part of a commercial farm or ranch operation due to the predominance of Class I-IV soils and the agricultural capability classifications of the property.

BASIS FOR APPEAL

- A. THE DECISION IMPROPERLY TREATS MAPPED SOILS AS DETERMINATIVE WITHOUT CONSIDERING ALL ASPECTS OF THE PROPERTY, ITS GENERAL UNSUITABILITY FOR FARMING, AND THE SURROUNDING CONDITIONS
- B. THE PARCEL CANNOT REASONABLY BE FARMED IN CONJUNCTION WITH ADJACENT AGRICULTURAL LAND DUE TO ITS EXTREMELY SMALL FOOTPRINT
- C. THE DIRECTOR'S OWN FINDINGS CONFIRM THAT THE REMAINING APPROVAL CRITERIA ARE SATISFIED, INCLUDING NOT MATERIALLY INTERFERING WITH ACCEPTED FARM PRACTICES AND NOT MATERIALLY ALTERING THE STABILITY OF THE SURROUNDING LAND USE PATTERN

PARTITION PLAT NO. 2025-31
(PROPERTY LINE ADJUSTMENT)



Allen Land Surveying, Inc.
322 N.W. 1st St., Suite 200
Gainesville, TX 77901-1200
Phone: 817-261-1200
Fax: 817-261-1201
Email: info@allenlandsurveying.com

Final Plat
Property: 644-000-0000
Survey: 2025-31
Plat: 2025-31
Date: 10/10/2025
Surveyor: Peter D. Allen
Plat No: 2025-31
Page: 1 of 2

REGISTERED LAND SURVEYOR
PETER D. ALLEN
No. 12345
Exp. 12/31/2026

Baker
4707 Lower River Road
Map No. 38-08-15-C0
Tax Lot 3100



02-5107-05
September 22, 2025

Josephine County Community Development - Planning Division
700 NW Dimmick, Suite A
Grants Pass, OR 97526

**SUBJECT: NO-RISE CERTIFICATE
TL 2800 LOWER RIVER ROAD
T36S, R06W, SEC15C
GRANTS PASS, OREGON**

Planning Staff:

This is to certify that my site evaluation and Simple Floodway Encroachment Analysis, as presented in the *Rogue River No-Rise Flood Analysis, New Residential Development* report, dated September 22, 2025, attached, verifies that the proposed construction of the subject residential development project on the subject site located at T36S, R06W, SEC15C, TL 2800 on Lower River Road in Grants Pass, Oregon, results in a No-Rise Declaration.

According to the Simple Floodway Encroachment Analysis results, the proposed new development, including the mitigation area, will result in no loss of flow conveyance and will not adversely affect the 100-year Rogue River flood elevations, or Floodway widths and elevations, on this or adjacent parcels.

I further certify that the data submitted herewith in support of this certification are accurate to the best of my knowledge, that the analyses have been performed correctly and in accordance with sound engineering practice, and that the proposed site development and structural works are designed in accordance with sound engineering practice.

Submitted By,

**THE GALLI GROUP
GEOTECHNICAL CONSULTING**

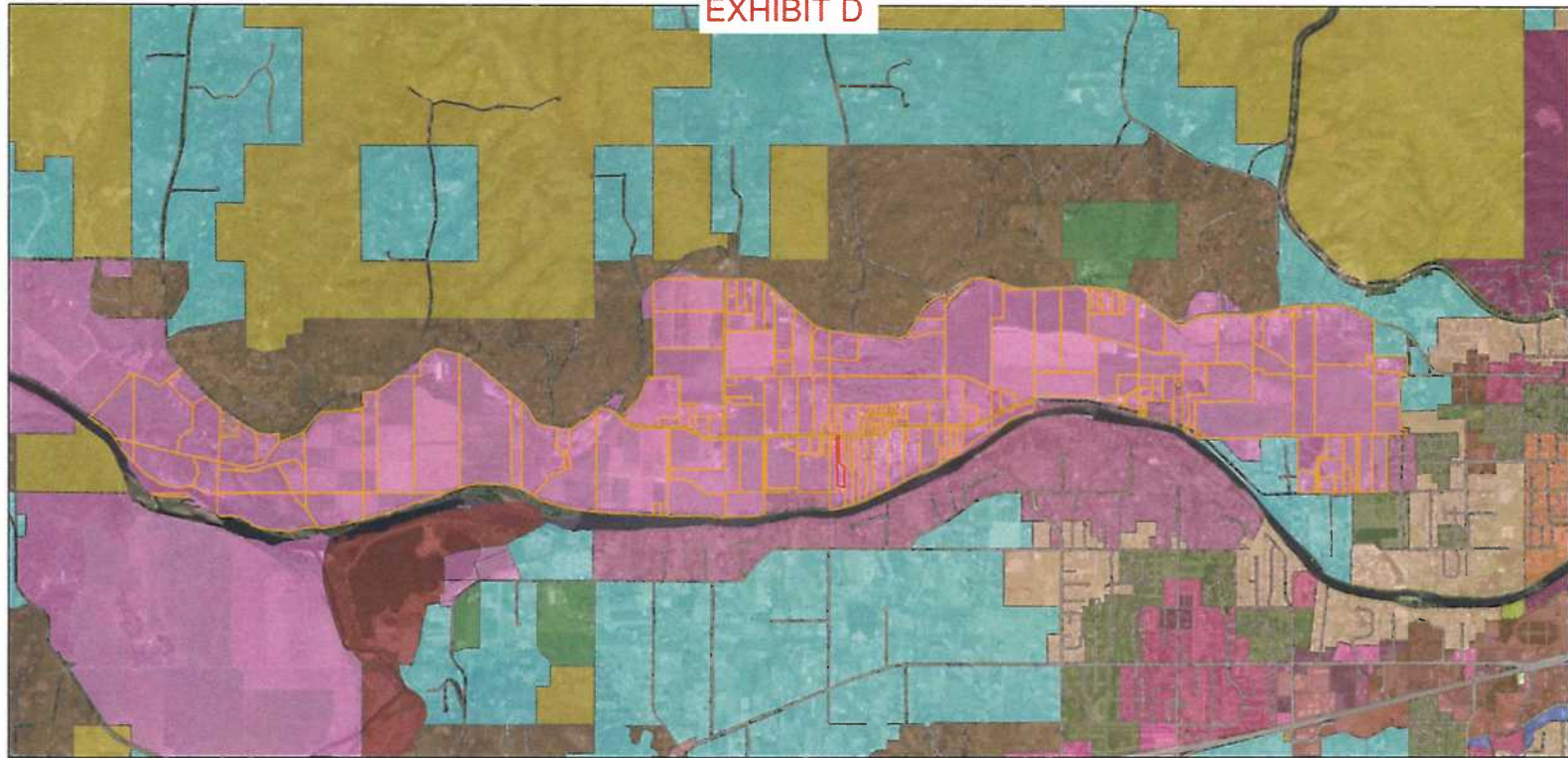
Melvin J. Galli III, P.E.
Senior Principal Engineer



EXPIRES: 06/30/2027

ArcGIS Web Map

EXHIBIT D



12/30/2025, 12:10:44 PM

2,000-Acre Study

Zoning

AR

BP

C-2

C-3

C-5

EF

FR

GC

I

R-1-12

R-1-6

R-1-8

R-2

R-3

R-4

RC

RI

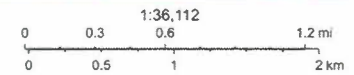
RR1

RR2.5

RR5

RTC-3

WR



Vanor

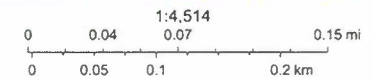
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EXHIBIT B



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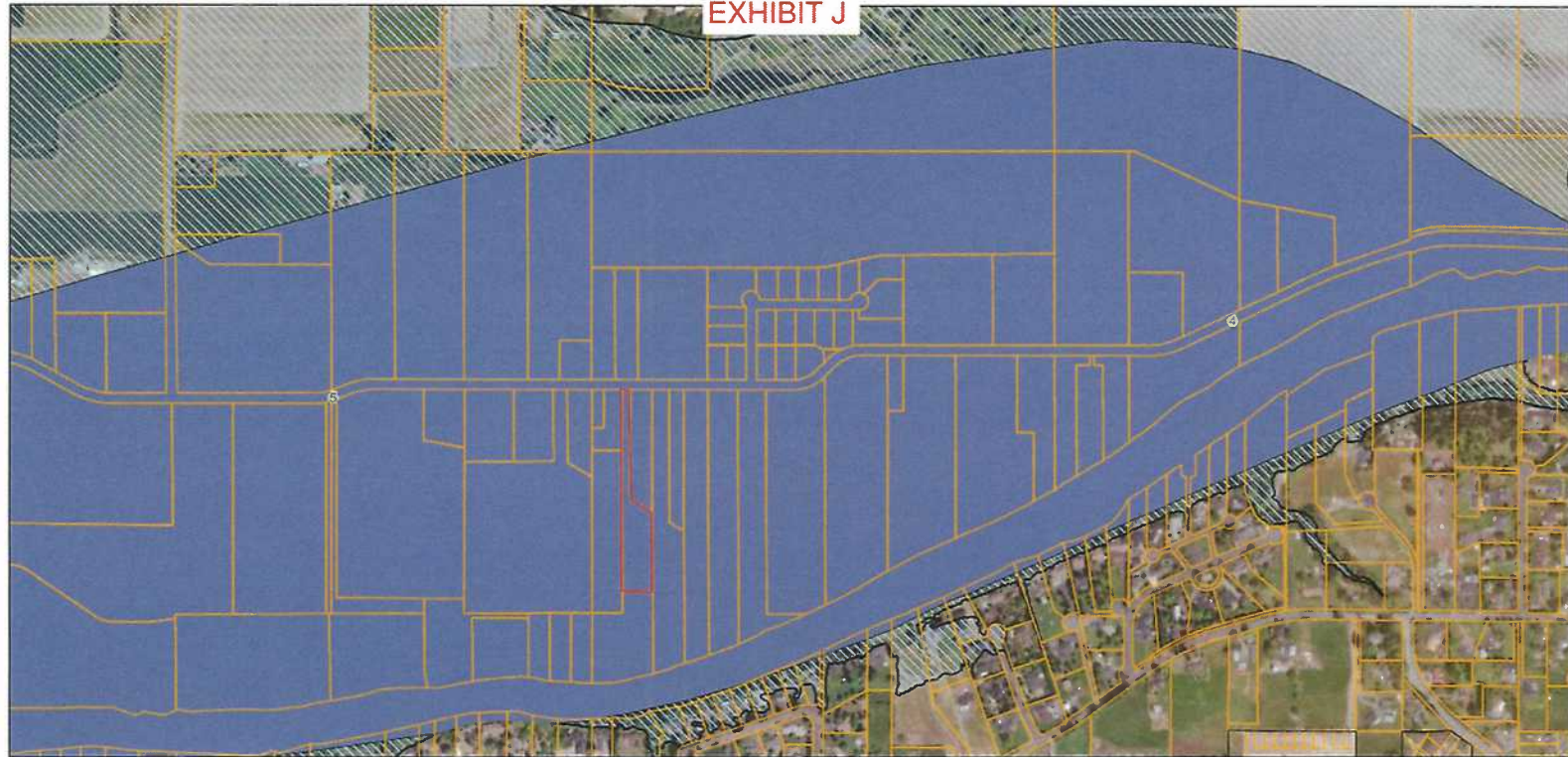
- Mile Markers
- Prime Soils
- Prime if Drained
- Taxlots
- Prime
- Prime if Irrigated



Vantor

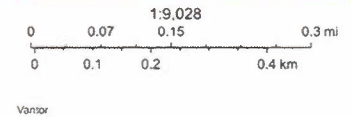
ArcGIS Web Map

EXHIBIT J



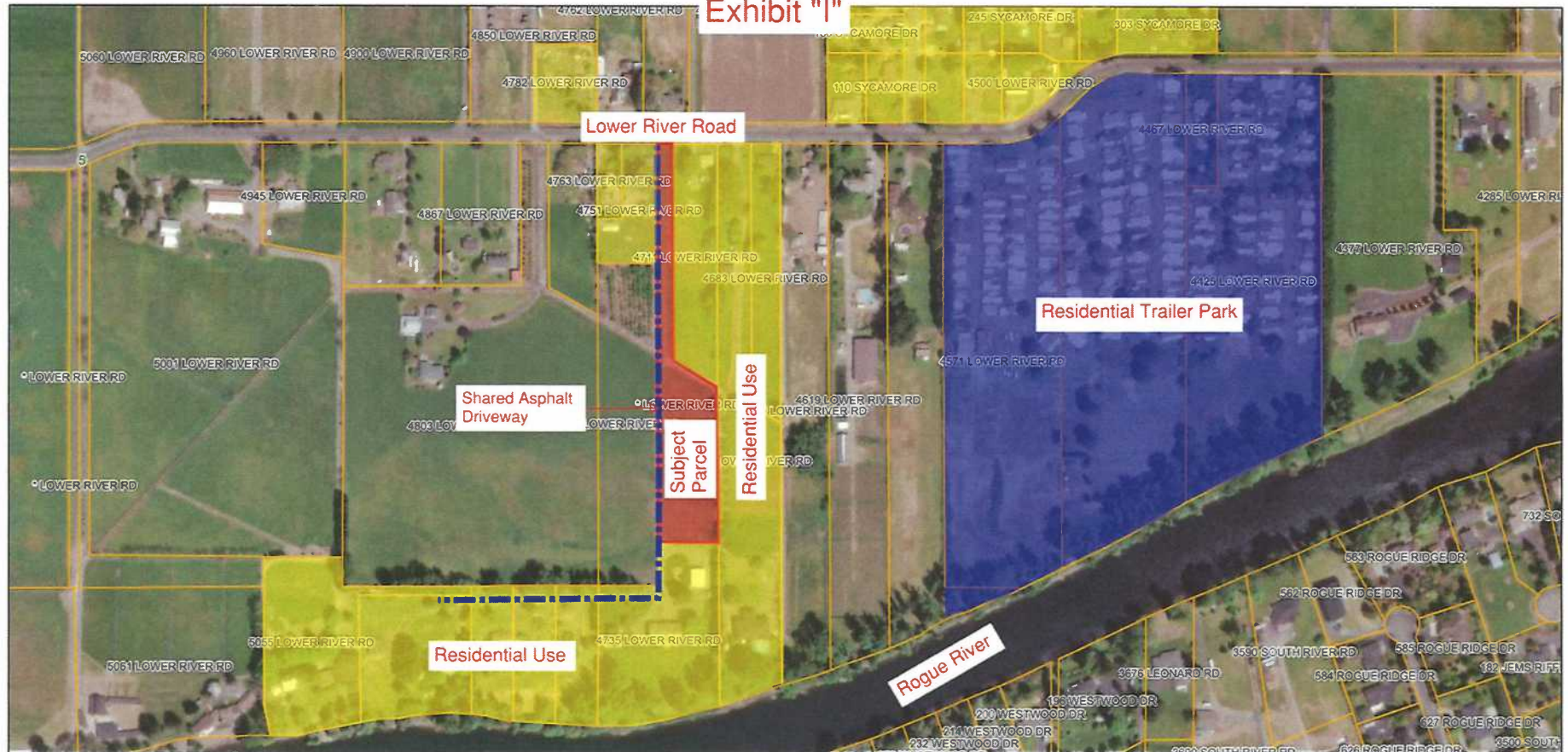
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- Grants Pass City Limits
- Taxlots
- AE, FLOODWAY
- Mile Markers
- Fema Flood Hazard
- AE, Fringe



ArcGIS Web Map

Exhibit "I"



1/13/2026, 4:13:40 PM

- Mile Markers
- Taxlots

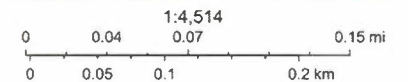


EXHIBIT "A" - FARMABLE AREA

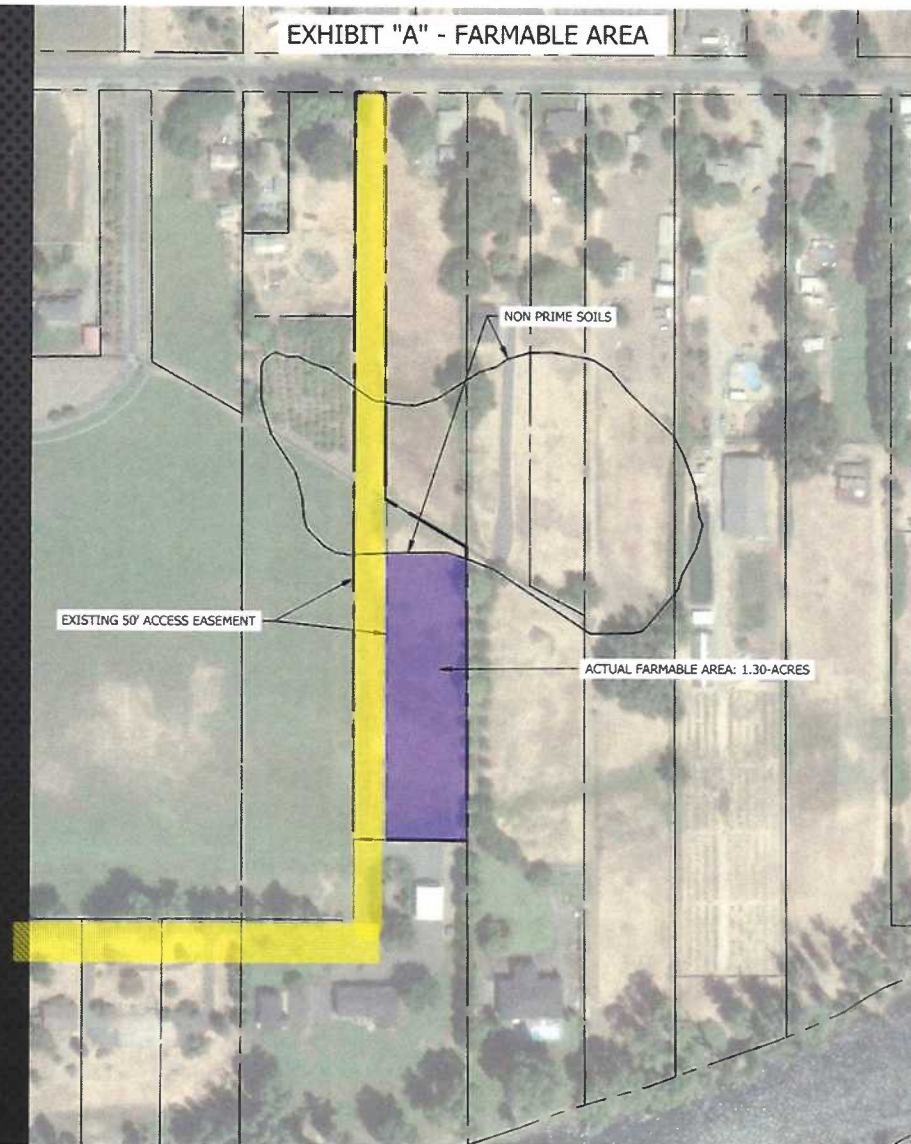
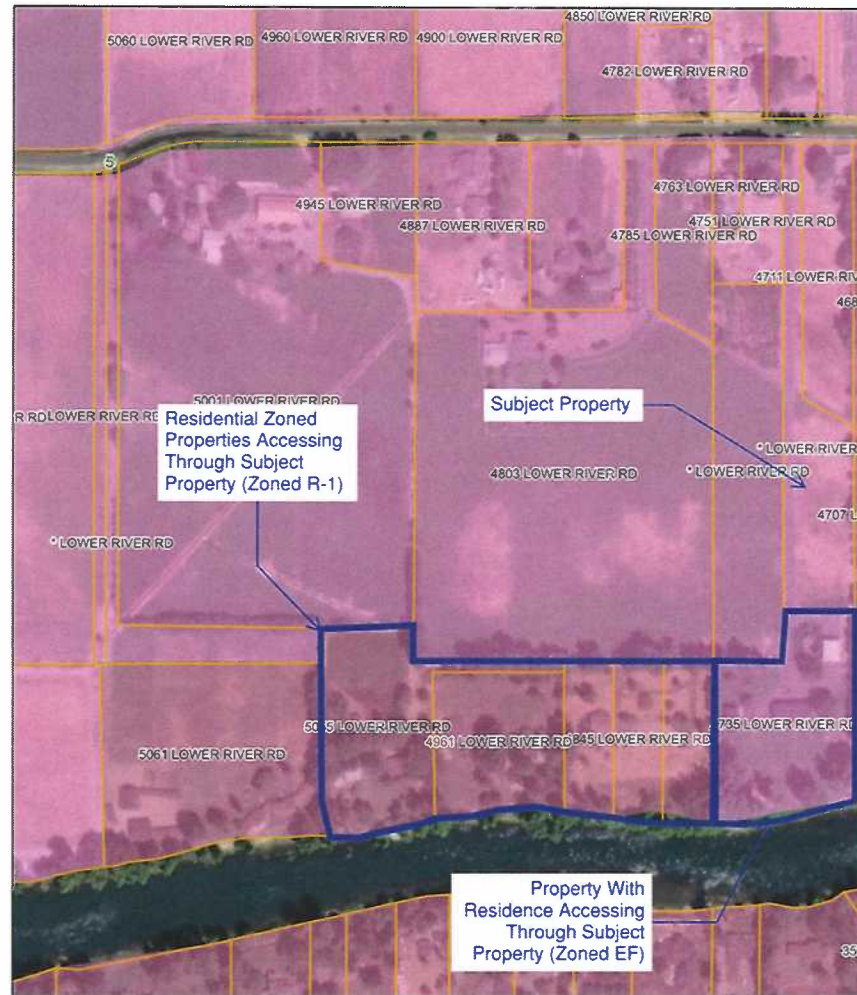


EXHIBIT "B" - SHARED ACCESS DRIVEWAY



EXHIBIT "C" - RIVERFRONT PARCEL ZONING



Emily Bertman
4751 Lower River Rd
Grants Pass, Oregon

June 16, 2025

Josephine County Planning Department
Grants Pass, Oregon

Re: Letter of Support — Dirling Family Non-Farm Dwelling Application

To the Josephine County Planning Department:

My name is Emily Bertman, and I am a neighboring property owner at 4751 Lower River Rd in Grants Pass. I am writing in strong support of the Dirling family's application to construct a non-farm dwelling on their property, and to respectfully encourage the Department to reconsider its denial of that request.

I have come to know the Dirling family through our shared road and have spoken at length with their son, Ray Jr., about their situation. His parents are aging and are no longer able to comfortably navigate the stairs in their current home. The proposed dwelling would allow them to remain close to their family, on property their family already owns, in a home designed to meet their needs as they get older. Meanwhile, Ray Jr. would move from the existing accessory dwelling unit into the parents' current home, making full use of the existing structures. This is a thoughtful, family-centered plan that causes no waste of resources and no disruption to the surrounding area.

I understand that the denial was based on a determination that the Dirlings' land is farmable. As a neighboring landowner and an active organic farmer myself, I want to offer my perspective on that characterization. The field in question lies directly across the driveway from my property, and it is my observation, shared, I understand, by at least three other farmers who have assessed the land, that it cannot support even basic forage crops such as hay. The proposed home site is located near the existing residence, and would have minimal footprint relative to the parcel as a whole. In my view, designating this ground as productive farmland when experienced local farmers have found it unproductive would be a hardship on the Dirling family without a corresponding agricultural benefit to the community.

I hope the Department will weigh this appeal with the full picture in mind- a family working to care for their elderly parents with dignity, on land that holds little practical agricultural value, with a plan that is sensible, modest in scope, and deeply rooted in the kind of rural community values we all share here in the Rogue Valley. I wholeheartedly support the Dirling family's request and ask that it be approved.

With appreciation for your consideration,

Emily Bertman

Justin Gerlitz

To: Amanda Courson
Subject: Luis Hernandez support quotes

To whom it may concern,

On the morning of July 3, 2026 at 10 AM we, Raymond Dirling and Amanda Dirling had a conversation with Luis S Hernandez, The homeowner of 4803 Lower River Road Grants Pass, OR 97526. Luis Hernandez has been farming his 20 acres for the past couple of decades. He is an alfalfa hay and hazelnut farmer. He currently has 281 hazelnut trees on his property which is adjacent to the subject properties shared driveway.

He received a letter from the county stating that our approval to build our one-story cottage had been denied. He told us because he is 87, He feels he would not like to write a letter however, if his late wife was still here, "she would have written one already." He gave us permission to "please quote him" by stating that in his opinion, the EFU land in subject that we have applied to build a house on is not farmable land and he would "never farm it". He said "it is too small". He said that "The county should let us build our cottage for our elderly parents to age in place in, and he would be happy to see us build." He also said that "as a neighbor to the property in question he has no reason to not build but wish's that the county would vote to let us build."

Thank you so much for your time and your consideration,

Amanda and Raymond Dirling

To the County Commissioners Office and Whom it May Concern,

My name is Caleb Hunter. I am a 4th generation farmer here in Southern Oregon. My family owns and operates APPLEGATE INVESTMENTS Co. Located at 6955 HWY 238 Jacksonville, OR 97530. We mainly farm alfalfa fields and cattle. We have 240 acres under cultivation. My family has been farming our land since the 1950's. I was approached by the Dirling family to give my professional opinion on the subject property located at (36-06-15-CO TL 2800) which is currently undeveloped land on Lower River Rd. When researching the property location, size and soil I have come to the conclusion that I would NOT farm this land. Even if I lived next door. The property size is too small. There would be no profit in order to justify the labor and time spent to plant any kind of crop. The driveway that the property has an easement to use does not allow for my heavy farming equipment to be used without harming the road / driveway that too many other property owners use on a daily and also have an easement for use. Lastly, the poor soil quality that has been established at this property would not satisfy our farming requirements and standards for a favorable and successful farm. It is in my professional opinion that the properties best use is for generational living. Allowing a small home to be built in order for the Dirling's to age gracefully in place and in doing so only using 2% of the observed "good soil" is using the property to it's fullest potential in both enhancing and preserving value to the property and also surrounding properties.

Thank you for your consideration and your time,

Caleb Hunter

Caleb Hunter

NEIGHBORING COMMENTS/FARM SUITABILITY

A. BERTMAN (NEIGHBOR/ORGANIC FARMER) – 4751 LOWER RIVER RD.

- CANNOT SUPPORT EVEN BASIC FORAGE CROPS SUCH AS HAY (SMALL/POOR SOILS)
- OTHER FARMERS HAVE PREVIOUSLY FOUND IT TO BE NON-PRODUCTIVE LAND

B. HERNANDEZ (NEIGHBOR/FARMER TO THE WEST) – 4803 LOWER RIVER RD.

- FARMS 20 ACRES TO WEST FOR ALFALFA AND HAZELNUT TREES
- NOT FARMABLE LAND, TOO SMALL, AND WOULD NEVER FARM IT (IN CONJUNCTION)

C. HUNTER (FARMER) – 6955 HWY 238

- WOULD NOT FARM THIS LAND, EVEN IF HE LIVED NEXT DOOR AS IT IS TOO SMALL
- NO PROFIT TO JUSTIFY THE LABOR AND TIME SPENT TO PLANT ANY KIND OF CROP
- POOR SOIL QUALITY WOULD NOT SATISFY HIS FARMING REQUIREMENTS/STANDARDS

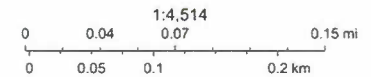
ArcGIS Web Map

EXHIBIT B



1/13/2026, 3:39:41 PM

- Mile Markers
- Taxlots
- Prime Soils
- Prime
- Prime if Drained
- Prime if Irrigated



Vanior

Technical Opinion Regarding Agricultural Non-Viability of The Dirling Revocable Living Trust's 2.71 Acre Parcel of Undeveloped Land on Lower River Road (36-06-15-CO TL 2800)

This letter is provided to the Dirling Revocable Living Trust to document the expert opinion of Richard Vogl, Hydrogeologist, who holds a Bachelors and Master's degree in Geology from California State University, Los Angeles, and is a registered geologist in California, Certified Hydrogeologist, and Certified Engineering Geologist, with over 40 years of professional experience in the field. This expert opinion is related to the above referenced property in Joesphine County, Oregon (Subject Property).

1. Executive Summary

The subject property is an undeveloped parcel in southern Oregon with a thin veneer of topsoil, ranging from approximately 12 to 36 inches in depth, with an average of 22 inches, overlying a dense stream-gravel deposit. These soil conditions were recently assessed and documented by numerous potholes conducted across the property by an excavation contractor (See attached test pit photos). These physical soil conditions materially restrict the effective rooting zone, reduce available water storage, limit nutrient retention, increase drought stress, and create severe limitations for sustained crop production. Based on the described soil profile, the land should not be characterized as viable cropland without extraordinary and economically disproportionate intervention.

2. Physical Soil Limitations

Effective soil depth is a controlling factor in crop productivity because plant roots require sufficient soil volume for anchorage, water uptake, and nutrient acquisition. Oregon State University's forage and soil guidance defines shallow soils as those with 10 to 20 inches before a restrictive layer and moderately deep soils as those with 20 to 36 inches before such a barrier. A restrictive layer may include gravel, rock, dense clay, or other materials that impede root development. The reported 12-to-36-inch topsoil depth across the



J



I



H



G



F



E



D



C



B



A

SOILS EVALUATION

1. COMPLETED BY RICHARD VOGL, REGISTERED GEOLOGIST, MASTERS IN GEOLOGY FROM CAL STATE, 40 YEARS EXPERIENCE
2. PHYSICAL SOIL LIMITATIONS
 - SHALLOW SOILS ARE PRESENT ABOVE A RESTRICTIVE LAYER (GRAVELS) WHICH IMPEDE ROOTING, WATER UPTAKE AND NUTRIENT ACQUISITION.
 - DRY PERIODS CAUSE CROPS TO EXPERIENCE MOISTURE STRESS AND WET PERIODS WATER MAY MOVE RAPIDLY THROUGH COARS SOILS REDUCING FERTILIZER EFFICIENCY.
3. LAND CAPABILITY AND CROP SUITABILITY
 - PROPERTY HAS PRECISELY THE TYPE OF ROOTING ZONE LIMITATION THAT WOULD REDUCE CROP CHOICE, INCREASE MANAGEMENT DIFFICULTY, AND WOULD LOWER EXPECTED YIELDS.
 - EVEN IF CERTAIN HARDY FORAGE, PASTURE, OR DRYLAND SPECIES COULD SURVIVE ON PORTIONS OF THE SITE, SURVIVAL IS NOT THE SAME AS COMMERCIALLY VIABLE CROP PRODUCTION.

SOILS EVALUATION (CONT.)

4. ECONOMIC NON-VIABILITY

- FARMING THIS PROPERTY WOULD REQUIRE SUBSTANTIAL CORRECTIVE MEASURES TO COMPENSATE FOR THE SHALLOW SOIL PROFILE
- WOULD IMPOSE HIGH CAPITAL AND OPERATING COSTS WITHOUT RESOLVING THE FUNDAMENTAL LIMITATION: SHALLOW ROOTING ZONE AND OVER DENSE GRAVEL
- LOW YIELD PRODUCES DEMINISHING RETURNS RATHER THAN PROFITABILITY.
- FOR THIS SOIL PROFILE, COSTS WOULD LIKELY EXCEED THE VALUE OF ANY CROP PRODUCTION

5. PHYSICAL SOIL LIMITATIONS

- SHALLOW SOILS ARE PRESENT ABOVE A RESTRICTIVE LAYER (GRAVELS) WHICH IMPEDE ROOTING, WATER UPTAKE AND NUTRIENT ACQUISITION.
- DRY PERIODS CAUSE CROPS TO EXPERIENCE MOISTURE STRESS AND WET PERIODS WATER MAY MOVE RAPIDLY THROUGH COARSE SOILS REDUCING FERTILIZER EFFICIENCY.

6. ENVIRONMENTAL CONSIDERATIONS

- SOILS WOULD REQUIRE UNUSUALLY HIGH INPUTS TO OBTAIN EVEN LOW YIELDS, CREATING DISPROPORTIONATE ENVIRONMENTAL BURDEN RELATIVE TO AGRICULTURAL BENEFIT.

SOILS EVALUATION (CONT.)

6. GEOLOGISTS CONCLUSION

- THE PROPERTY SHOULD BE FOUND UNSUITABLE AND NOT ECONOMICALLY VIABLE FOR CROP FARMING.
- THE MORE TECHNICALLY SOUND CONCLUSION IS THAT CROP FARMING IS NOT A PRACTICAL, ECONOMICALLY VIABLE, OR ENVIRONMENTALLY RESPONSIBLE USE OF THIS PROPERTY.

CONCLUSION

- A. BASED ON THE RECENTLY PROVIDED SOILS ANALYSIS, THE ACTUAL CONDITIONS OF THE SITE DIFFER FROM THE GENERAL SOIL MAPPING. THE SOILS CLEARLY DO NOT SUPPORT VIABLE FARMING OPERATIONS.
- B. THE PARCEL CANNOT REASONABLY BE FARMED BY ITSELF OR IN CONJUNCTION WITH ADJACENT AGRICULTURAL LAND, WHICH WAS CONFIRMED BY THE SURROUNDING FARMERS.
- C. THE DIRECTOR'S OWN FINDINGS CONFIRM THAT THE REMAINING APPROVAL CRITERIA ARE SATISFIED, INCLUDING NOT MATERIALLY INTERFERING WITH ACCEPTED FARM PRACTICES AND NOT MATERIALLY ALTERING THE STABILITY OF THE SURROUNDING LAND USE PATTERNS

DECISIONS ON LAND ZONED EXCLUSIVE FARM USE

Fill in sections I and II for all decisions. Fill in sections III, IV, and V as appropriate. Attach adopted written findings and conclusions and a vicinity map for each decision.

I. General Information:

Applicant: LUCK + LINDI BAKER Local File Number: _____

Zone: ET Location: T: 36 R: 6 S: 15-3 TL: 3100

Quarter Section: SW Quarter/Quarter Section: _____
(Fill in NE, NW, SW or SE; or A, B, C, or D)

Soil # (e.g. 13A, 6C)	Percent of Parcel	SCS Soil Class
(1) <u>14 CAMAS GUL S.L.</u>	<u>10%</u>	<u>IVw</u>
(2) <u>57 NEWBERG FINE S.L.</u>	<u>90%</u>	<u>IIw</u>
(3) _____	_____	_____

Current Resource Use of the Parcel (from Standard Industrial Class - SIC):

Type 001 Acres 4.75; Type _____ Acres _____; Type _____ Acres _____

001 - Not in Production	011 - Cash Grains	021 - Livestock
002 - Cons. Reserve Prog. (CRP)	013 - Field Crops	024 - Dairy Farms
081 - Forestry including woodlots	016 - Vegetables and Melons	025 - Poultry and Eggs
082 - Christmas Trees	017 - Fruits & Tree Nuts	027 - Animal Specialties
	018 - Horticultural Specialties	029 - Gen. Farms, Prim. Livestock
	019 - Gen. Farms, Prim. Crops	

II. Decision-maker:

Plan. Dir.	Hear. Off.	Plan. Comm.	County Board
---------------	---------------	----------------	-----------------

Please indicate the decision made by each involved decision-maker on this action. A = Approved; D = Denied

A

Date Decision was Final: 6-18-93

III. Uses Other than Dwellings from ORS 215.283 (1) or (2)

Specific Use: _____ Approved _____ Denied _____

Use as listed in ordinance: _____ Parcel Size: _____ ac.

IV. Dwelling Decision: Approved X Denied

	<u>New</u>	<u>Replacement</u>	<u>Proposed Farm</u> <u>Use - SIC Code</u>
Primary Farm Dwelling ORS 215.283 (1)(f)	<u> </u>	<u> </u>	<u> </u>
Accessory Farm Dwelling ORS 215.283 (1)(e)	<u> </u>	<u> </u>	
Temporary/Hardship Dwell. ORS 215.283 (2)(k)	<u> </u>	<u> </u>	
Seasonal Farm Housing # of units <u> </u>	<u> </u>	<u> </u>	
NonFarm Dwelling ORS 215.283 (3)	<u>X</u>	<u> </u>	

Size of Parcel: 4.75 ACRES Size of Farm: (Include all owned and leased land in the farm operation.)

Number of existing dwellings on the parcel: 0

V. Division/Lot Line Adjustment Decision: Approved Denied

Farm Division

NonFarm Division

Lot Line Adjustment

Size of Parent Parcel(s):

For each resulting parcel fill in the size, whether the parcel is farm or nonfarm, and the number of existing dwellings on each. Include the SIC code of the farm use proposed for any farm parcels created.

	<u>Size</u>	<u>Farm/</u> <u>NonFarm</u>	<u># of Existing</u> <u>Dwellings</u>	<u>Proposed Farm</u> <u>Use - SIC Code</u>
Parcel 1	<u> </u> ac.	<u> </u>	<u> </u>	<u> </u>
Parcel 2	<u> </u> ac.	<u> </u>	<u> </u>	<u> </u>
Parcel 3	<u> </u> ac.	<u> </u>	<u> </u>	<u> </u>

FINDINGS OF CONSISTENCY IN REGARD TO THE BAKER

DWELLING NOT IN CONJUNCTION WITH FARM USE

Application was made May 20, 1993, for consideration of a request by Buck N. and Lindi Lu Baker, for establishment of a home not in conjunction with farm use on property located in the Exclusive Farm District, described in the Assessor's Records as T 36, R 6, Section 15-3, Tax Lot 3100.

Section 6.030(4) includes such a use by administrative permit, requiring the owners of surrounding properties be notified of the request and be given the opportunity to comment.

Notification complying with ordinance requirements was mailed June 1, 1993. The 10 day period for objections expired on June 11, 1993, and no objections were received.

I. CRITERIA:

Section 6.030(4) establishes the review criteria for non-farm dwellings in the Exclusive Farm (EF) zone, requiring findings that the proposed dwelling satisfy all the following criteria:

- A.** It is compatible with commercial farm uses as identified in ORS 215.203(2)(a).
- B.** Is consistent with the agricultural land use policy of the State Legislature as expressed in ORS 215.243.
- C.** Does not interfere with accepted farming practices as defined in ORS 215.203(2)(c) and does not materially alter the overall land use patterns in the area.
- D.** Demonstration that the residence will be situated upon generally unsuitable land for the production of farm crops and livestock, considering the terrain, adverse soil or land conditions, drainage and flooding, vegetation, location and size of tract.
- E.** The lot or parcel has been disqualified for valuation for farm use under 308.370 pursuant to the requirement of ORS 215.236.

II. EVIDENCE:

- A.** The property is zoned Exclusive Farm totaling 4.75 acres.
- B.** The property is located in an area with a mixture of private ownership on lots from .35 to 5.63 acres. There are about

thirty residential dwellings within one quarter of a mile, with a mixture of farm residential and residential uses within one half mile.

- C. There are no intensive farm operations on adjacent lands, with the closest commercial farm a quarter to the mile to the north being a dairy farm. No letter of concern or objection were received by reason of the notice letter.
- D. The property has agricultural soils rated from Class IIw to Class IVw. The proposed homesite is to be in an open meadow, with Class IIw Newberg Fine Sandy Loam soil.
- E. This site is within the floodway of the Rogue River. Any construction will need to comply with the Flood Hazard Ordinance.
- F. The County Watermaster's Office indicated that this part of the property does not have irrigation rights.
- G. The property receives a 406 residential assessment.
- H. The owners should sign a disclosure statement that recognizes that the farm use in the area has priority over the residential uses.

III. FINDINGS:

- A. The property is zoned EF, which is consistent with the Josephine County Comprehensive Plan.
- B. The parcel in question was created by Warranty Deed 271/643 in 1970, and is a valid parcel.
- C. The approval of the dwelling will be compatible with farm practices in the area. It will not be adjacent to any farm activities, and the existing farm operations in the vicinity are buffered by both distance and intervening land holdings. The intervening uses include the Rogue River to the south, Lower River Road to the north, residences to the east and west, Garcia Subdivision to the northeast, and Country Estates Mobile Home Park to the east.
- D. The nature of the farm practices in the area show no potential for conflict with the location of the proposed residence. The residence will be located on the southern end of the parcel near other residential dwellings, which will maximize the distance to existing commercial farms.
- E. The land use pattern for the immediate area is clearly small parcel-residential.

- F. David A. Bassett, Consulting Engineer, has issued a letter dated June 2, 1993, stating that the house will have "no impact or rise on the 100 year Base Flood Elevation."
- G. The lack of irrigation, parcel configuration, plus small parcel size and adjacent residences, make this lot unsuitable for farm use.
- H. The property does not require declassification due to the residential assessment.
- I. The disclosure statement has been signed.

IV. CONCLUSION:

- A. Based upon the preceding evidence and findings, the Planning Director concludes that the application for a non-farm dwelling complies with the requirements of Josephine County and State law pertaining to such matters.

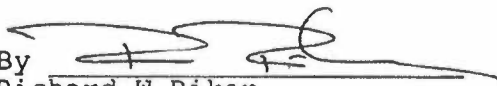
V. DECISION:

Therefore, the Planning Director grants a permit to Buck N. and Lindi Lu Baker for the placement of a residence not in conjunction with farm use on property heretofore described.

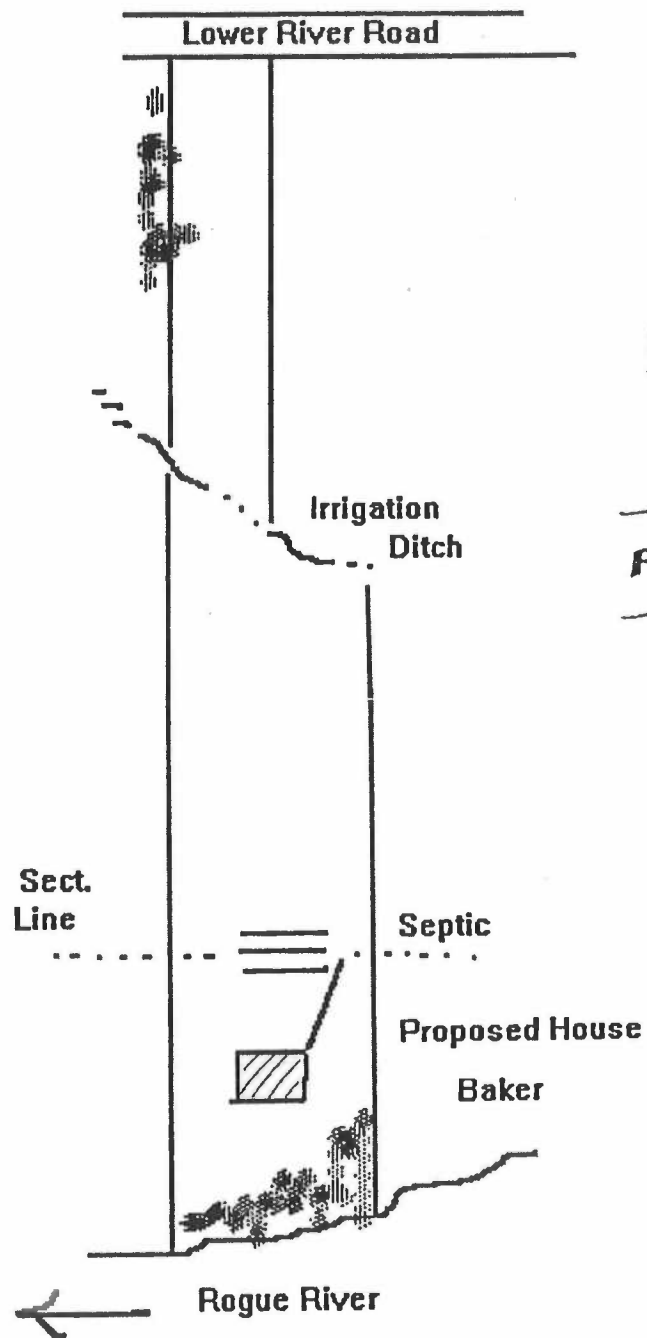
(36-6-15-3 Tax Lot 3100)

Adopted this 18th Day of June 1993.

For Wm. Bruce Bartow
Planning Director

By 
Richard W. Riker
Planning Assistant

cc Applicant Ron Elsasser, Assessor's



North

36-6-15-3
TL 3100

FLOODWAY

**EXCLUSIVE FARM DISTRICT
DISCLOSURE STATEMENT**

The Josephine County Zoning Ordinance, Section 19.026, Standards for Conditional Uses in the Exclusive Farm District.

"The Exclusive Farm classification is intended to preserve agricultural land for farm uses and forest uses and the conservation of natural resources. Normal agricultural and forest practices shall not be considered a nuisance condition in an Exclusive Farm District, provided that such actions are consistent with the Oregon Revised Statutes 215.203 to 215.273 and the Oregon Forest Practices Act and do not extend beyond the boundaries of the Exclusive Farm District. Nothing in this regulation is intended to interfere with normal agricultural or forest practices that might result in conditions such as noise, dust or odor from temporary periods of time. Residents of this District should recognize that the intent of the District is to protect resource management activities, and that in the event of a conflict between residential use and normal agricultural or forestry practices, this regulation will be interpreted in favor of the resource management practice."

Pursuant to Section 19.026(6) of the Josephine County Zoning Ordinance, I acknowledge that I have read the above statement and recognize that my home is being constructed in a resource area.

X Bush N. Baker
Signature

X _____
Signature

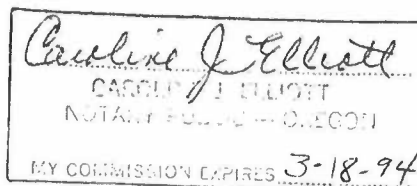
STATE OF OREGON)
County of Josephine) ss.

On this 18 day of June,
personally came before me a Notary Public in and for said County
and State the above named Bush N. Baker,
who executed the within instrument and acknowledged to me that he/
she executed the same freely and voluntarily.

Caroline J. Elliott

Notary Public, State of Oregon

My Commission Expires: 3-18-94



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Pursuant to Section 19.026(6) of the Josephine County Zoning Ordinance, I acknowledge that I have read the above statement and recognize that my home is being constructed in a resource area.

Linda L Baker 6/18/93
Signature

Signature

ALL-PURPOSE ACKNOWLEDGMENT

No. 5179

State of Calif
County of Marin
On 6/19/93 before me, David A Farber
DATE NAME, TITLE OF OFFICER - E.G., "JANE DOE, NOTARY PUBLIC"

personally appeared Linda L. Baker
NAME(S) OF SIGNER(S)

☐ personally known to me - OR - ☒ proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.



Witness my hand and official seal.

David A. Farber
SIGNATURE OF NOTARY

CAPACITY CLAIMED BY SIGNER

- ☐ INDIVIDUAL
☐ CORPORATE OFFICER(S) _____ TITLE(S) _____
☐ PARTNER(S) ☐ LIMITED ☐ GENERAL
☐ ATTORNEY-IN-FACT
☐ TRUSTEE(S)
☐ GUARDIAN/CONSERVATOR
☐ OTHER: _____

SIGNER IS REPRESENTING:
NAME OF PERSON(S) OR ENTITY(IES)

—Subject property:

4735 Lower River Road
Grants Pass, Oregon.

We are neighboring property owners residing at 4961 Lower River Rd. Grants Pass, Oregon
We have never received any notification of the current building plans at 4735 Lower River Rd.

We are writing to express our concerns regarding the ongoing development occurring at
4735 Lower River Rd., (LRR).

Background.

The subject properties that make up our community is on a private road off of lower River Road.
It consists of four home sites. One of the home sites was the site of a home that had burned years and years ago that home site has been split into three parcels.

One site, that consists of two parcels is being developed as one home site, will be developed at a future undisclosed time.

The other single parcel is being developed currently, with two homes.

This pushes our community to a total of seven homes. It again.

CONCERNS:

Inspections during building is absolutely necessary to hold accountable to regulations.

Overbuilding in a floodplain where agricultural and rural properties may be converted to denser residential use.

When agricultural or farm properties are developed at higher residential densities, the resulting changes can affect traffic, privacy, drainage, floodplain conditions, agricultural operations, and the overall rural character of the neighborhood.

It is important that development decisions carefully consider whether proposed densities and uses are consistent with the existing character and applicable land use protections.

Concerns—we are down River from this property so anything that washes out from a flood situation will come towards us. The large shop building is built inconsistent with regulations having the doors of the large metal shop not in the correct direction for a flood situation.

When we moved to this neighborhood in 2019 -the property at 4735 Lower River Rd. consisted of a single-family residence and one large metal shop building.

Since then an additional dwelling described as an ALS (with non permitted items—full kitchen facilities, short term rental use), has been constructed resulting in a total of three substantial structures on the property.

Current—We understand that another approximately 2800 square-foot home is now being proposed or considered.

A well has been dug.

Plans are made, but, the proposal was denied.

Now, soils are being tested at the site to prove poor agricultural use. The site is being made to appear useless for agricultural use, again to help prove a home site is best use.

The soil on this site is no different than most of the soil in this beautiful agricultural zone -Sandy, Rocky, River bed soil the most sought after, fertile soil anywhere.

Concern- we are convinced that following the initial denial, legal or procedural strategies, are being used to circumvent the substance of that decision, and to ultimately obtain approval through a modified or renewed application.

Concern-is that if approved, another request could eventually follow for an additional ALS unit associated with that new home effectively creating a small housing development.

As neighboring property owners, we respectfully ask:

At what point does continued expansion exceed what is permitted under agricultural land use regulations?

Are accessory dwelling units, ALS units allowed (with full kitchen facilities) in addition to multiple primary residences on this property?

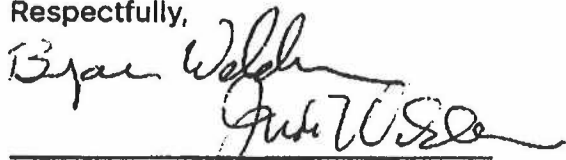
What limits exist to prevent incremental overdevelopment of ea parcel?

Please clarify what protections are in place to preserve, productive, agricultural soils, existing farm operations, space, (home density)and the rural character of lower River Road.

Please identify opportunities for neighboring property owners to receive notice. Review proposals and provide meaningful public comment before decisions are made.

We respectfully ask that any future land used decisions, recognize the value of this area and protect the qualities that make lower River Road and the Rogue River corridor, a special place to live.

Respectfully,



Name/property owner.

8/14/26

Date